

RIGUERO v. MENDEZ

23CV46995

DEFENDANT'S MOTION TO SET ASIDE DEFAULT

This is a verified complaint to remove the executor and recover the memorial and funeral expenses incurred by plaintiff.

Service was effected on October 25, 2023, and default was entered on November 27, 2023. The Motion to Set Aside Default was filed on November 29, 2023.

Since 1/1/18, all matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court.

Failure to include this language in the notice is a basis for the Court to deny the motion.

Motion is DENIED without prejudice to re-filing with proper language included in Notice of Motion..

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

COMBRINCK v. CLERICO

23CV46872

MOTION TO COMPEL INITIAL RESPONSES [to second sets of discovery] and MOTION TO COMPEL FURTHER RESPONSES [to second sets of discovery] and FOR SANCTIONS

Plaintiff's suit seeks a partition by sale of the real properties located at: 1) 41 Purdy Road, Angels Camp; 2) 938 Purdy Road, Angels Camp; and 3) "Dead Horse Mine" (Calaveras County Assessor Parcel Number 062-002-094-000), and Declaratory Relief. The matters before the court are two separate discovery motions brought by plaintiff.

On October 11, 2023, plaintiff served second set of form interrogatories, second set of special interrogatories, second set of requests for admission, and second set of document production requests to defendant who has not responded to these discovery requests, requested an extension of time to respond, or contacted plaintiff's counsel (**Initial Motion**).

The 330-page **Second Motion** seeks to compel further responses to the supplemental responses to first sets of discovery (form and special Interrogatories, requests for admission, and document production). Defendant responded to the first sets of discovery, asserting numerous objections. After exchanges as to the sufficiency of responses between counsel, defendant provided supplemental responses, which plaintiff claims are still defective as they contain the same objections. Sanctions are also requested as part of both motions.

Courts construe the discovery statutes broadly. (*Flagship Theatres of Palm Des., LLC v. Century Theatres, Inc.* (2011) 198 Cal.App.4th 1366, 1383.) "All doubts about discovery are resolved in favor of disclosure." (*Glenfed Dev. Corp. v. Superior Court (National Union Fire Ins. Co. of Pittsburgh, Penn.)* (1997) 53 Cal.App.4th 1113, 1119.)

A party objecting to discovery bears the burden of justifying its objections. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255; *Kirkland v. Superior Court (Guess?)* (2002) 95 Cal.App.4th 92, 98.) Similarly, the burden is on the defendant to demonstrate that disclosure is inappropriate. (*Babcock v. Superior Court (DiGiovanni)* (1994) 29 Cal.App.4th 721, 727-728.) Here, the defendant is silent.

Initial Motion

Plaintiff's second sets of discovery were electronically served on October 11, 2023; responses were all electronically served on November 15, 2023, i.e., the last day for a